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California Assembly approves bill to shield school children from 'harmful' food dyes

May 30, 2024 | Food Safety News (USA)
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OpenURL Link

The California Assembly, where the current multi-state movement to ban certain food additives began two years ago, has acted again; this time, its focus is on California's $1.6 billion school lunch program.

In its latest action, the California Assembly has sent the state Senate a bill that prohibits, commencing July 1, 2025, food containing seven specified food dye additives (Blue 1; Blue 2; Green 3; Red 40; Titanium dioxide; Yellow 5; and Yellow 6) from being offered, sold, or otherwise provided to students by school districts, county offices of education (COEs), charter schools, and state special schools.

The 59 to 0 vote on Assembly Bill (AB) 2316 advanced a bipartisan measure to ban those six food dyes and titanium dioxide from food provided in any of the state's public schools. Two major consumer and environmental groups are backing the bill: Consumer Reports and the Environmental Working Group. Twenty-one Assembly members did not vote when the measure reached the floor.

AB2316 bans a list as harmful that includes Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 2, and Green Dye No. 3, and the food additive titanium dioxide.

The bill's sponsor is Assemblyman Jesse Gabriel, D-Encina. He says titanium dioxide has been linked to DNA damage and immune system harm, and the dyes are linked to neurobehavioral problems in children.

"California has a responsibility to protect our students from chemicals that harm children and can interfere with their learning ability," said Gabriel. "As a lawmaker, a parent, and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to cancer, hyperactivity, and neurobehavioral harms."

"This bill will empower schools to protect the health and well-being of our kids better and encourage manufacturers to stop using these dangerous additives," he added.

Gabriel successfully authored the California Food Safety Act, which Gov. Gavin Newsom signed into law last year, banning four additives from food manufactured, delivered, and sold in the state.

Other states, including Illinois and New York, have picked up on those banned by California, which include potassium bromate, brominated vegetable oil, propylparaben, and Red Dye No. 3.

Opposition to AB2316 came from the California Brands Association, which said, "This measure usurps the comprehensive food safety and approval system for these colorings, would limit the availability of wholesome and healthy foods."

It said the United States federal government has a comprehensive food safety process that reviews food additives and colorings. In addition, it said California has several laws that require removing chemicals from foods, attaching warning labels, and finding alternatives if those food additives are unsafe. The federal and state systems and many international scientific bodies have thoroughly reviewed these additives, and they continue to be deemed safe. FDA continuously monitors information on the safety of all food and color additives and maintains data on the safety of all color additives approved in the U.S.

Additionally, the California Brands Association told the Assembly that the U.S. FDA, the European Food Safety Authority (EFSA), and the WHO/FAO Joint Expert Committee on Food Additives (JECFA) have all concluded that the

evidence suggesting associations between exposure to FD&C colors and adverse behavior in children and concluded that no causal relationship has been established and no additional risk management is warranted.

California's Office of Environmental Health Hazard Assessment in 2021 found that many food dyes and colorants, including the six dyes covered by AB 2316, make some children vulnerable to behavioral difficulties and decreased attention.

Thousands of chemicals are allowed for use in food sold in the U.S. Many of those the Food and Drug Administration has reviewed have not been reevaluated for decades, even when new science is available. For instance:

* Titanium dioxide, which has been linked to damage to DNA and harm to the immune system, hasn't been assessed since 1966. In 2022, the European Union prohibited it from use in food offered for sale, but it is still allowed in food sold in the U.S.

* Red Dye No. 40 has not been evaluated for health risks since 1971. Many studies show it may pose a risk to brain development in children, hyperactivity, and even cancer.

* Yellow Dye No. 5 has been approved for use since 1931. The FDA affirmed its use of good manufacturing practices in 1969.

* Yellow Dye No. 6 was approved in 1931, and the FDA reaffirmed its use in 1986.

* Blue Dye No. 1 has been approved for use since 1931. Its use was affirmed in 1969.

* Blue Dye No. 2 was last approved in 1983.

* Green Dye No. 3 has been allowed for use since 1931 and hasn't been reaffirmed

"These dangerous dyes should not be allowed in foods sold in schools because they put kids at risk for hyperactivity and other neurobehavioral issues," said Brian Rodholm, food policy director at Consumer Reports. "Removing these harmful dyes from school foods will protect the health and well-being of kids in California.

Children have lower tolerance levels of chemical exposure than adults, and their developing bodies make them especially vulnerable.

"Why are foods with these toxic dyes being served in schools?" asks Susan Little, EWG's senior advocate for California government affairs. "We know they are harmful, especially to some children. We must protect this vulnerable group from being exposed at school, where they eat meals and are expected to learn."

Consumers often rank food chemical concerns ahead of other food safety issues. However, the FDA does not adequately regulate additives.

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- **Citation (apa Style)**
  Flynn, D. (2024, May 30). California Assembly approves bill to shield school children from 'harmful' food dyes*Food Safety News (USA)*. Available from NewsBank: Access World News – Historical and Current: https://infoweb.newsbank.com/apps/news/document-view?p=WORLDNEWS&docref=news/19962F3BA7A49AF8.